

ALITO, J., dissenting

Muslim—express deep concern that the position now adopted by the Court “will trigger open conflict with the faith-based employment practices of numerous churches, synagogues, mosques, and other religious institutions.”⁵¹ They argue that “[r]eligious organizations need employees who actually live the faith,”⁵² and that compelling a religious organization to employ individuals whose conduct flouts the tenets of the organization’s faith forces the group to communicate an objectionable message.

This problem is perhaps most acute when it comes to the employment of teachers. A school’s standards for its faculty “communicate a particular way of life to its students,” and a “violation by the faculty of those precepts” may undermine the school’s “moral teaching.”⁵³ Thus, if a religious school teaches that sex outside marriage and sex reassignment procedures are immoral, the message may be lost if the school employs a teacher who is in a same-sex relationship or has undergone or is undergoing sex reassignment. Yet today’s decision may lead to Title VII claims by such teachers and applicants for employment.

At least some teachers and applicants for teaching positions may be blocked from recovering on such claims by the “ministerial exception” recognized in *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U. S. 171 (2012). Two cases now pending before the Court present the question whether teachers who provide religious instruction can be considered to be “ministers.”⁵⁴ But even if teachers with those responsibilities qualify, what about other very visible school employees who may not qualify for the

⁵¹ Brief for National Association of Evangelicals et al. as *Amici Curiae* 3; see also Brief for United States Conference of Catholic Bishops et al. as *Amici Curiae* in No. 18–107, pp. 8–18.

⁵² Brief for National Association of Evangelicals et al. as *Amici Curiae* 7.

⁵³ McConnell, Academic Freedom in Religious Colleges and Universities, 53 Law & Contemp. Prob. 303, 322 (1990).

⁵⁴ See *Our Lady of Guadalupe School v. Morrissey-Berru*, No. 19–267; *St. James School v. Biel*, No. 19–348.